

WHEN INSTITUTIONS ASK FOR ADDITIONAL DOCUMENTS

Assets	Nomination available and/or it matches with the will	No nomination and/or there is a mismatch with the will
 Banks accounts/ other financial assets	No additional documents needed usually	Will, death certificate, legal-heir certificate, affidavits, no-objection declarations from other heirs and an indemnity bond
 Flats in cooperative housing societies	No additional documents needed usually	Will, affidavits, indemnity bonds, no-objection declarations from other legal heirs or, where the claimants disagree, a succession certificate, probate or letters of administration
 Landed or immovable property	Will and death certificate, legal-heir documents, affidavits, mutation applications, indemnities or no-objection declarations from the other heirs. Probate or letters of administration may be required where a dispute or competing claim necessitates adjudication by a competent court.	

SOURCE: TRILEGAL

ner of law firm Khaitan & Co.

To ensure that a will is executed and even future earnings (of the testator/testatrix after the will is made) are accounted for, Tanmay Patnaik, partner in the Private Client Practice at Trilegal, offers an important suggestion. “It is advisable to include alternative executors and alternative beneficiaries in case the primary persons named are unable to act or predecease the testator,” says Patnaik. “A sound will should also contain a residuary clause dealing with assets that may

not have been specifically listed or that may be acquired in the future, so that no part of the estate is left to devolve by intestacy” or not being covered by a valid will.

In India, it is not mandatory to register a will, but experts suggest doing so nonetheless.

“Registration is optional but can be beneficial as it provides documentary evidence of the will’s existence, confirms that the testator or testatrix personally appeared before the registering authority and acknowledged the document,

and ensures its safe custody with the registrar,” says Patnaik.

INTESTATE ISSUES

In the absence of a will, after a person’s death, the assets are bequeathed on the basis of applicable succession laws.

The Hindu succession law specifies heirs under classes (Class 1, Class 2 and so on in order of precedence). Most of the sections are applicable to Buddhists, Jains, and Sikhs as well.

For Christians, the Indian Succession Act is applicable, with provisions that specify how much to allocate to the spouse, children, parents and so on.

The Muslim Personal Law allows only one-third of the value of the assets to be passed on via a will. The rest go to legal heirs on the basis of Sharia laws.

“A will allows one to override the application of personal laws which govern intestate succession and ensure that an individual’s assets are distributed according to their wishes and not as per a statutory formula,” says Khaitan.

“For instance, under Hindu law, if a male dies intestate (without leaving a valid will), his mother is also a heir alongside the spouse and children, which tends to be a surprise for many people,” he adds.

NOMINATION ISSUES

Nominating someone may not be enough to bequeath assets. Patnaik of Trilegal makes an important distinction here. “A nominee is essentially a trustee who is authorised to collect funds from the bank / financial institution after the account holder’s death, but the underlying ownership remains with the legatee named in a valid will, or in the absence of a valid